

Sri N Ramesh Rao Mane vs Smt Sumathi Bai Sindhe B on 7 August, 2023

Author: G.Narendar

Bench: G.Narendar

- 1 -

NC: 2023:KHC:27722-DB
MFA.CROB No. 90 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 7TH DAY OF AUGUST, 2023
PRESENT

THE HON'BLE MR JUSTICE G.NARENDAR
AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A. PATIL
MFA CROSS OBJECTION NO.90 OF 2017 (FC)

BETWEEN:

SRI N. RAMESH RAO MANE
S/O LATE N. NAGESH RAO
AGED 42 YEARS
RESIDING AT NO.26/5,13TH CROSS ROAD,
KANAKANAGARA,

Digitally
signed by
RUPA V
Location:
HIGH
COURT OF
KARNATAKA

R. T. NAGAR POST
BENGALURU-560 032.

...CROSS OBJECTOR

(BY SRI. SURESH BABU B. N., ADVOCATE)
AND:
SMT. SUMATHI BAI SINDHE B.,
D/O SRI BYROJI RAO
AGED ABOUT 38 YEARS
RESIDING AT 516
9TH MAIN ROAD, 7TH B CROSS
YESHWANTHAPURA
BENGALURU-560 022

...RESPONDENT

(BY SRI. SATISH K., ADVOCATE)

THIS MFA.CROB IN MFA.NO.777/2017 IS FILED U/O 41 RULE
22 OF CPC PRAYING TO SET ASIDE THE JUDGMENT AND DECREE
DATED 09.11.2016 PASSED IN M.C.NO.974/2012 BY THE FILE OF
THE III ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT AT
BANGALORE, SO FAR IT PERTAINS TO FIXING OF MONTHLY
MAINTENANCE TO THE MINOR SON.

THIS MFA.CROB, COMING ON FOR ADMISSION, THIS DAY,
VIJAYKUMAR A. PATIL J., MADE THE FOLLOWING:

-2-

NC: 2023:KHC:27722-DB
MFA.CROB No. 90 of 2017

JUDGMENT

This MFA Cross Objection is filed under Order XLI Rule 22 of the Code of Civil Procedure against the judgment and decree dated 09.11.2016 passed in M.C.No.974/2012 by the III Additional Principal Judge, Family Court, Bengaluru, (for short, 'the Family Court') by which the petition filed by the petitioner-husband under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of the cruelty and desertion was allowed. This cross objection is filed by the cross objector-husband only insofar as directing the cross objector-husband to pay monthly maintenance to the minor son. The MFA No.777/2017 filed by the respondent-wife was dismissed as withdrawn vide order dated 06.09.2017.

2. Brief facts giving rise to filing of this cross objection are that the marriage between the cross objector-husband and the respondent-wife was solemnized on 16.02.2006 at Venkateshwara Kalyana Soudha, NC: 2023:KHC:27722-DB M.S.Ramaiah Road, Gokula, Bangalore, as per their customs and rituals. It is averred that he was working as Second Division Assistant in the Health Department of the Karnataka Government. It is further averred that he lived with his mother, step mother, brother, sister-in-law and his sister. It is also averred that the respondent-wife insisted to have a separate residence and she was not ready to live in joint family. The cross objector-husband has alleged certain cruelty against the respondent-wife in the petition filed before the Family Court.

3. The respondent-wife entered appearance before the Family Court by filing statement of objections. The respondent-wife has admitted her marriage with cross objector-husband and birth of male child out of the wedlock. It is averred that it is the cross objector-husband who has caused cruelty on the respondent-wife and other averments of the petition are denied.

4. The Family Court based on the pleadings, framed the issues and recorded the evidence. The cross NC: 2023:KHC:27722-DB objector-husband examined himself as PW.1 and got marked the documents as per Exs.P1 to P6. The respondent-wife examined herself as RW1 and got marked the documents as per Exs.R-1 to R-15. The Family Court, on appreciation of evidence, has allowed the petition filed by the cross objector-husband by dissolving the marriage between the cross objector-husband and the respondent- wife solemnized on 16.02.2006, further the Family Court has directed the cross objector-husband to pay entire educational expenses of his son Master Deepak and in case if the respondent-wife has paid, the same shall be reimbursed to respondent-wife. The Family Court has further directed the cross objector-husband to pay monthly maintenance Rs.8,000/- to respondent-wife for the maintenance of son Master Deepak till he attains the age of majority from the date of petition i.e., 19.03.2012 and also directed to pay Rs.25,000/- towards litigation expenses to the respondent-wife. In the aforesaid factual background, this cross objection

is filed being aggrieved by the judgment and decree of the Family Court insofar it NC: 2023:KHC:27722-DB relates to directing the cross objector-husband to pay entire education expenses, arrears, if any, monthly maintenance of Rs.8,000/- to his son till he attains majority and payment of Rs.25,000/- towards litigation expenses.

5. Sri.Suresh Babu B.N., learned counsel appearing for the cross objector-husband submits that the Family Court has failed to consider the evidence on record in its proper perspective and submits that the monthly maintenance awarded to the minor son by the Family Court is on the higher side.

6. It is submitted that the Family Court has erred in directing the cross objector-husband to pay the entire education expenses of his son Master Deepak and also award of Rs.25,000/- towards litigation expenses without appreciating the fact that the cross objector-husband is working as a First Division Clerk in the Health Department and the respondent-wife is working as a Assistant Teacher in the Government School and she is drawing more salary NC: 2023:KHC:27722-DB than the cross objector-husband. It is also submitted that the cross objector-husband has a responsibility to take care of his ailing mother, step mother, and the entire earning of the cross objector-husband is being spent on maintaining the dependants in the joint family. Therefore, the order of the Family Court directing the cross objector- husband to pay huge amount is contrary to evidence on record and liable to be set aside. Hence, he seeks to allow the appeal by setting aside the impugned judgment and decree passed by the Family Court insofar as it pertains to fixing the monthly maintenance to his son Master Deepak and direction to pay entire educational expenses of his son.

7. Per contra, Sri.Satish K., learned counsel for the respondent-wife supports the impugned judgment and decree passed by the Family Court and submits that the present cross appeal is filed by the husband only insofar as award of monetary benefits/maintenance to the son, however no maintenance is awarded to the respondent-

NC: 2023:KHC:27722-DB wife. It is submitted that it is the respondent-wife who is taking care of the minor son from the beginning. It is submitted that the minor son has been provided with good education and growing in good atmosphere by providing quality lifestyle and the salary what the respondent-wife is getting is not sufficient to meet her personal expenses, and the personal and educational expenses of the child, as the child is now studying in 11th Standard and in the coming days the school and college expenses would be more, hence, it would not be appropriate to interfere with the orders passed by the Family Court. Hence, he seeks to dismiss the cross objection.

8. We have heard the learned counsel for the cross objector-husband, learned counsel for the respondent-wife, perused the memorandum of appeal and Family Court records.

9. The parties to the proceeding do not dispute their relationship and the birth of the child viz., Master Deepak. The present cross objection is filed by the NC: 2023:KHC:27722-DB husband against the judgment and decree passed by the Family Court only insofar it relates to the direction to pay the entire education expenses of his son master-Deepak, the direction to pay monthly maintenance of Rs.8,000/- to his son Master Deepak and the direction to pay Rs.25,000/- towards litigation expenses.

10. The cross objector-husband does not dispute that he is working as a First Division Clerk in the Health Department and his monthly salary is Rs.29,476/-. It is also not in dispute that the respondent-wife is working as an Assistant Teacher in the Government School and she is having the custody of the minor son Master Deepak from the date of his birth. Now the son is studying in 11th Standard. Considering the aforesaid facts and evidence on record, the Family Court has directed the cross objector- husband to bear the entire education expenses of his son Master Deepak and to pay additional amount of Rs.8,000/- every month for the maintenance of the child.

NC: 2023:KHC:27722-DB

11. On careful perusal of pleading and evidence on record, it is not in dispute that the respondent-wife is all- alone taking care of their son Master Deepak from his birth and she has borne all his personal and educational expenses from day one. We are of the considered view that the direction of the Family Court insofar as payment of monthly maintenance of Rs.8,000/- per month to the minor son is just and proper and does not call for any interference in this appeal.

12. While confirming the order of the Family Court insofar as the direction to pay maintenance of Rs.8,000/- per month to his son Master Deepak, we have kept in mind the factors like present cost of living, social status of the parties and also the fact that the minor son is in the adolescent age and jointed college and the respondent- mother is required to spend substantial amount not only to the education of the minor son but for his holistic development.

- 10 -

NC: 2023:KHC:27722-DB

13. The Family Court has directed the cross objector-husband to bear the entire education expenses of his son Master Deepak. In our considered view, the Family Court has committed grave error in directing the cross- objector-husband alone to pay the entire educational expenses. As both the parties/parents are Government Servants and drawing a substantial sum and it is the equal responsibility of both the cross objector-husband and the respondent-wife to provide good education to their son Master Deepak. The respondent-wife is equally responsible to bear the educational expenses to be incurred on the minor son. Therefore, we are of the considered view that both the cross objector-husband as well as the respondent-wife are required to bear the educational expenses of their son Master Deeapk equally and accordingly, we modify the impugned judgment and decree of the Family Court to that extent. It is made clear that the modification referred supra insofar as incurring of educational expenses equally by the cross objector- husband and respondent-wife, shall operate from today

- 11 -

NC: 2023:KHC:27722-DB and the cross objector-husband is liable to pay arrears, if any, towards the educational expenses of his son.

14. Insofar as grant of litigation expenses of Rs.25,000/- by the Family Court is concerned, we do not find any justification for awarding litigation expenses to the respondent-wife. The cross objector-husband has filed a petition under Section 13(1)(ia)(ib) of the Hindu Marriage Act, which was allowed and the respondent-wife has contested the proceedings. In that view of the matter, the judgment and decree of the Family Court insofar as award of Rs.25,000/- towards litigation expenses is set aside.

15. For the aforementioned reasons, we pass the following :

ORDER i. The cross objector-husband is directed to pay 50% of the educational expenses of his son Master Deepak from today.

- 12 -

NC: 2023:KHC:27722-DB

ii. The cross objector-husband is directed to
pay arrears, if any, towards the

educational expenses of his son Master Deepak.

iii. The cross objector-husband is directed to continue paying monthly maintenance of Rs.8,000/- towards maintenance of his son Master Deepak as directed by the Family Court.

iv. The direction of the Family Court to pay
Rs.25,000/- to the respondent-wife

towards litigation expenses is set aside and the impugned judgment and decree of the Family Court is modified to the aforesaid extent.

Accordingly, this MFA Cross Objection is disposed of.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR